IN THE HIGH COURT OF JUSTICE HELD IN ACCRA ON THURSDAY THE 22ND DAY OF MAY 2025 BEFORE HER LADYSHIP JUSTICE MARY M.E YANZUH, JUSTICE OF THE SUPERIOR COURT OF JUDICATURE SITTING AT CRIMINAL COURT THREE (3)

SUIT NO. CR/0183/2025

THE REPUBLIC

VRS

DANIEL ADU FRIMPONG } **RESPONDENT**

EXPARTE

MONYO MICHAEL WEDZI
HSE OPPOSITE ABOFU PRESBY
SCHOOL, ACHIMOTA ACCRA } **APPLICANT**

JUDGMENT

I find it appropriate to commence this Judgment with the words of Lord Morris in the case of **Attorney-General v Times Newspaper Ltd [1974] AC 273 @ 302, HL** where the Learned Judge stated,

> *"in an ordered community courts are established for the pacific settlement of disputes and for the maintenance of law and order. In the general interest of the community, it is imperative that the authority of the courts should not be imperiled and that recourse to them should not be subject to unjustifiable interference. When such unjustifiable interference is suppressed, it is not because those charged with the responsibilities of administering justice are concerned for their own dignity: it is because the very structure of ordered life is at risk if the recognized courts of the land are so flouted that their authority wanes and is supplanted"*

The power to punish for contempt is a judicial whip entrusted to the custodian of the justice delivery system to correct members of the public who by their actions or words deliberately seek to undermine administration of justice as noted in the case of **Parashuram Detaram Sham Dasani vrs. The King Emperor per Lord God dard [1945] AC 214.**

Per an application filed on the 15th day of January 2025, the Applicant herein, prays the Court to commit the Respondent herein, to prison for contempt of Court. The basis of the prayer as set out in the affidavit in support of the originating motion is that the applicant instituted an action at the kwabenya Circuit court against Respondent and two others in suit numbered. GR/KB/CCT/ A2/24/2024 INTITULED; MONYO MICHAEL WEDZI V REDEEMER R.K. GANOO, SAVIOUR KWADZO GAVOR AND DANIEL ADU FRIMPONG for the following reliefs:

"A. An order directed at the defendants to release the vehicle to the

Plaintiff.

b. An order of specific performance directed at the 1st Defendant.

C. Special damages of two thousand Ghana cedis (GHC 2000) weekly calculated from the time defendants unlawfully detained the vehicle on the 27th day of May 2024 to final judgment against the defendants jointly and severally.

D. General Damages against the Defendants

e. Cost including legal fees against the defendants.

f. Any further orders) this court may deem fit to make

He stated that the aforementioned suit was necessitated by the fact that the Respondent breached an agreement (Uber driver agreement) dated the 27th day of January 2022 between himself, the Respondent and two other defendants. He stated that the Respondent was duly served with the writ of summons and accompanying statement of claim by substitution as evidenced by the proof of service. He continued that pursuant to the substantive claim and in other to access the Toyota vehicle with registration number GE-3378-22 without difficulty in the event he succeeds in his suit pending before the Kwabenya Circuit court, he caused his lawyer to file an application for preservation and preserve the vehicle to be in the custody of the court till the final determination of the matter. He added that the Circuit Court granted the application and ordered the Respondent to bring the vehicle in dispute to the Registry of the court within 24 hours. He stated that he filed and served the Respondent with the order of the court for preservation as well as a penal notice. He asserted that the effect of the order

and the service of same on the Respondent is that the Respondent consequently owed the court a duty to not only respect the order of the court, but further owed a duty to take steps to bring the vehicle to the registry of the court within 24 hours.

He stated that contrary to the order of the Court, and the onus placed on the Respondent because of said order, the Respondent continued to deliberately disobey the orders of the court and that a search at the registry of the court indicate that the Respondent has failed to comply with the court orders. He added that Respondent's deliberate refusal to heed to the orders of the court and to take any steps to ensure that himself, his agents, servants and assigns showed respect to the order of preservation constitutes an unpardonable show of disrepute and punishable contempt in respect of which the Court must make an example out of the Respondent.

He deposed that once an order of preservation is granted by the Court, the person who the order was directed at must comply with the order of the court for which the order of the court was granted otherwise they are guilty of contempt, as such conduct amounts to treating the court and its sacred processes with impunity and brings the administration of justice into disrepute. He deposed further that considering the character of the subject matter in dispute, which character necessitated his application for an order for preservation to ensure the vehicle in dispute is in the safe custody of the court to ensure he gets access of the vehicle in the event he succeeds in his suit, the contemptuous behaviour of the Respondent threatens to permanently deprive him of access to the vehicle in the event he succeeds in the suit pending before the circuit court and incapable of being remedied with costs. Annexed to the affidavit in support is the writ of summons with the accompanying statement of claim marked as exhibit A, an uber driver agreement marked as exhibit B, affidavit of service of the writ of summons

and statement of claim and motion for preservation and hearing notice as exhibit C, the order for preservation marked as exhibit D, DVLA form C marked as exhibit E, penal notice with the order of preservation marked as exhibit F, proceedings of the court marked as exhibit F1, affidavit of posting of the order and penal notice on the 3rd Defendant marked as exhibit G, search report marked as exhibit H.

The instant application was served on the Respondent via substituted service. He failed or refused to respond to the process or appear in court. The court therefore on the 10th of March 2025 ordered the applicant to file and serve his written submissions on the Respondent via substituted service through the same mode and manner already ordered by this court on the 18th of February 2025. The matter was then adjourned to the 15th of April 2025 to ensure compliance with the court orders and also take a date for judgment.

CASE OF THE RESPONDENT

On the 15th of April 2025, when the matter was called, the court noticed on the court's docket a notice of entry of appearance by A.H Cobbinah Esq and an affidavit in opposition deposed to by one Mensah Dorgbetor a businessman deposing that he had the authority and consent of the Respondent to depose to the facts which are within his personal knowledge, information and belief. He stated that the respondent is domiciled in Dubai and that the respondent facilitated the renting of the vehicle for the applicant but the conditions under which the vehicle was released was not adhered to by the applicant and that as a result of the behaviour of the applicant the vehicle was seized by the company. He added that the respondent has had to pay about GHC9000 for a new engine for the vehicle, which turned out to be false upon making enquiries about the vehicle engine and that the vehicle that applicant was using was used for

stealing operations. He added that the vehicle was impounded by the Ghana Police, Achimota for over six (6) months and no sales were being made and it affected the payment plan for the vehicle. He continued that in February 2023 he was not receiving sales from the applicant and when he called him to find out the applicant told him that the police were after him and that the applicant upon further enquiries said he had no idea but he gave the car to a friend to pack his belongings to a different place so on his way some people chased him and he left the car but the truth was that they used the vehicle for a stealing operations and they were arrested. He concluded that he has not interfered with the administration of justice as well as prejudice the pending matter as he is not in the jurisdiction. The deponent annexed to the affidavit in opposition an agreement between himself and Erinyak Logistics marked as exhibit MD1, copies of pages in the passport of the Respondent and a charge sheet of a criminal matter in the Circuit Court, Achimota marked as exhibit MD2 series.

Even though the said affidavit in opposition was filed at the time the court had ordered for written submissions to be filed, the court would consider same in order to consider the matter on its merit and in its bid to do justice.

THE LAW AND ITS APPLICATION TO THE INSTANT CASE

The laws on contempt, from it types, standard of proof and its essential ingredients are well established by case law. In the case of **IN RE EFFIDUASE STOOL AFFAIRS (NO.2); REPUBLIC VRS NUMAPAU, PRESIDENT OF THE NATIONAL HOUSE OF**

CHIEFS; EX-PARTE AMEYAW II (N0.2), (1998-99) SCGLR 639, the Supreme Court held that

> *"Contempt of court may be classified either as direct and indirect or as civil and criminal. Direct contempt's are those committed in the immediate view and presence of the court (such as insulting language or acts of violence) or so near the presence of the court as to obstruct or interrupt the due and orderly course of proceedings. Indirect (or constructive) contempt's are those which arise from matters not occurring in or near the presence of the court, but which tend to obstruct or defeat the administration of justice, and the term is chiefly used with reference to the failure or refusal of a party to obey a lawful order, injunction, or decree of the court laying upon him a duty of action or forbearance. Civil contempts are those quasi contempts which consist in the failure to do something which the party is ordered by the court to do for the benefit or advantage of another party to the proceedings before the court, while criminal contempts are acts done in disrespect of the court or its process or which obstruct the administration of justice or tend to bring the court into disrespect."*

What is however certain from the authorities is that, no matter how one classifies contempt, that is whether Direct or Indirect, Civil or Criminal, the central objective is the need to protect the dignity and authority of the Court and to ensure that, the path of justice was set free from obstruction. To this end, it was held in the case of **OPOKU VRS. LIBHERR FRANCE SAS & ANOTHER (2012) 1 SCGLR** by the Supreme Court per Atuguba JSC at page 160 that,

> *"it was well-settled that there were different forms of contempt. Underlying all of them, however, was one basic notion, that the path of public justice should at all times be free*

from obstruction. Conduct which tended to create such an obstruction would constitute contempt. Thus interfering with witnesses or jurors; frightening off parties to litigation; refusing to answer questions in court; commenting on pending proceedings in such a manner as to prejudice the outcome; running down the courts and the judges; refusing to obey an order of the court - any of those, if calculated to, or tend to, impede or obstruct the course of justice would constitute contempt."

Since contempt is so manifold in its aspect, it is always important that, in an application citing a person for contempt, the basis or grounds of the contempt is set out clearly. This is the reason why Order 50 rule (1) (3) of C.I. 47, (as amended) provides that, the application shall be supported by an affidavit stating inter alia the grounds of the application. This enables the Court to know the very act which the person is alleged to have done that undermines the dignity and authority of the court or interferes with the path of justice. It also enables the person accused of committing the contemptuous act to know the nature of the accusation so as to be able to prepare his defence.

In the instant case, the Applicant's application is that, the Respondent herein should be committed to prison for contempt of Court because he has deliberately refused to heed to the orders of the court requiring him to bring the subject vehicle with Registration No GE-3378-22 to the Registrar of the Kwabenya Circuit Court Accra within 24 hours of the order.

Per the authorities, there is no doubt that, a person or an institution can by his acts be found guilty of contempt if it is established that, he had acted in such a manner that is calculated or intended to prejudice the outcome of the proceedings or obstruct the course of justice.

Since the Applicant is the one accusing the Respondent of wrongdoing, he had the burden to prove that assertion in line with section 15(1) of the Evidence Act, 1975, Act 323 which provides that *"unless and until it is shifted, the party claiming that a person is guilty of crime or wrongdoing has the burden of persuasion on that issue"*.

In contempt applications such as the instant one, the burden of proof is beyond reasonable doubt as stated in cases including the **Republic vrs Osei Bonsu II, Mamponghene & Others; Ex-Parte Amadie & Buor, (2007-2008) SCGLR 566** and **REPUBLIC v. BEKOE AND OTHERS; EX PARTE ADJEI [1982-83] GLR 91** where it was held that

> *"the principle of law was quite clear that where a person was charged with contempt of court, his guilt should be proved with the same strictness as required in a criminal trial, i.e. proof beyond reasonable doubt. In the result, the onus of proof lay on the applicant and the one charged could not be compelled to give evidence against his will, although where an affidavit was used in evidence, the court had discretion under the rules of court to order the deponent to be cross-examined upon it."*

The applicants having set out the alleged contemptuous act of the respondent, it is their bounden duty to prove same with the same strictness as in criminal trials that is proof beyond reasonable doubt.

Since the applicant was the one that had asserted that the Respondent were guilty of contempt, the burden of proof was upon the applicant to prove that the Respondent breached the order of the court and that they did so willfully. In the case of **REP V.**

SITO 1; EX-PARTE FORDJOUR, (2001-2002) SCGLR 322 the Supreme Court summarized the ingredients that an applicant for contempt of court in the nature as the present case must prove in order to succeed as follows:

1. There must be a judgment or order requiring the contemnor to do or abstain from doing something.

2. It must be shown that the contemnor knows what precisely he is expected to do or abstain from doing and;

3. It must be shown that he failed to comply with the terms of the judgment or order and that his disobedience is willful.

In so considering the case of the applicant as per the affidavit evidence presented to the court, the order of preservation of the subject vehicle which is evidence of the order requiring the contemnor to do or abstain from doing something by the Kwabenya Circuit Court was annexed to the application as exhibit D. The said order is dated the 9th of October 2024 and the record of proceedings exhibit F1 is also evidence of the order of the court. Per the said order, the trial circuit judge order *"…an order is hereby given for the preservation of the vehicle in question. 3rd Defendant is to bring the vehicle to the Registrar of this court within 24 hours of this order, following which the vehicle is to be kept at a garage within the jurisdiction of this court, at the cost of Plaintiff and 3rd Defendant until otherwise determined by the Court"*

Going further, the evidence presented to this court shows that the Respondent as 3rd Defendant in the action is aware of the order of the court requiring him to bring the

subject vehicle to the Registrar of the court within 24 hours. Firstly, exhibit F1, the proceedings of the day dated the 9th of October 2024, the day the order was given, the 3rd defendant/Respondent herein was present in court when the order was made. Further to that, when he failed to produce the vehicle to the court within 24 hours, the applicant herein served him with the order and penal notice which is annexed to the application as exhibit G.

Per a search report annexed to the application as exhibit H, as at the 15th October 2024, the Respondent has not produced the subject vehicle to the registry of the court.

Per the Respondent, it seems to me that he intends to justify the reasons for seizing the vehicle from the applicant in the first place, an act which necessitated the suit in the trial court. He has not given any reasonable excuse for his failure to comply with the order of the court. Per his own exhibits, he only departed from the country on the 24th of November 2024 and this was after he had been in court and heard the order of the court and when also the penal notice and the order had been served on him.

Flowing from the above, the application for contempt succeeds. A warrant of this court is hereby issued for the Respondent to be brought before this court on the next adjourned date for punishment.

PARTIES:

APPLICANT PRESENT

RESPONDENT ABSENT

COUNSEL:

PRINCE BOAHEN GYAN FOR BAFFOUR GYAWU BONSU ASHIA FOR THE APPLICANT PRESENT

A. H. COBBINAH ESQ FOR THE RESPONDENT ABSENT

MARY M.E YANZUH J.
JUSTICE OF THE HIGH COURT